



Salaries & Remuneration  
Commission  
*Rewarding productivity*

**CONTRACT FOR PROVISION OF INTERNET SERVICES**

**SRC/OP/15/2023-2024**

**BETWEEN**

**SALARIES AND REMUNERATION COMMISSION (SRC)**

**AND**

**XTRANET COMMUNICATION LIMITED**



**Dated 1<sup>st</sup> December, 2023**

**THIS AGREEMENT** [hereinafter called "the Contract") made this **1<sup>st</sup>** day of **December, 2023** **BETWEEN: SALARIES AND REMUNERATION COMMISSION**, a Constitutional Commission established under Article 230 of the Constitution of Kenya, 2010 of Williamson House, 6<sup>th</sup> Floor, 4<sup>th</sup> Ngong Avenue, Upper Hill; P.O. Box 43126-00100, NAIROBI, (*hereinafter called "The Commission", which expression shall where the context so admits include its successors and permitted assigns*) of the one part,

**AND**

**XTRANET COMMUNICATION LIMITED** a limited liability company and having its registered office at The Citadel Building 6<sup>th</sup> floor Westlands Road, P.O. Box 27346-00100 Nairobi, Kenya in the Republic aforesaid (hereinafter referred to as the "**Service Provider**" which expression shall where the context so admits include its successor(s) and assign(s)) of the other part.

## **WHEREAS**

- a) The Commission advertised tender No. **SRC/OP/15/2023-2024** for provision of Internet Services and
- b) The Service Provider has accepted to provide the services, during the period of the Agreement, at the price stated ("Contract Price");

## **NOW THIS AGREEMENT WITNESSETH AS FOLLOWS:**

### **1. WORDS AND EXPRESSIONS**

- 1.1 In this Agreement the terms ``Contract" and "Agreement" are used interchangeably.
- 1.2 **Commission** and the **Service Provider** are separately referred to as ``the Party" and jointly referred to as ``the Parties".
- 1.3 "**Confidential Information**" means all information or material communicated between the Parties, including the terms of this Agreement, provided that Confidential Information shall exclude information or material which at the time of its disclosure is, or which thereafter becomes, (in each case otherwise than as a result of any act or default by the recipient), part of the public domain by publication or otherwise.
- 1.4 "**Corrupt Practice**" means the act of doing something with an intent to give some advantage inconsistent with official duty and the rights of others.



| No.   | Item Description                                                                       | Quantity | Basic Unit Price exclusive of all levies | Charges and other levies/taxes | Please specify unit price inclusive of all taxes/levies | Total price inclusive of all taxes/levies |
|-------|----------------------------------------------------------------------------------------|----------|------------------------------------------|--------------------------------|---------------------------------------------------------|-------------------------------------------|
| 1.(a) | Bandwidth Charges: Quarterly charges for 60mbps Internet Bandwidth                     | 60 mbps  | 130,000                                  | 20,800                         | 150,800                                                 | 452,400                                   |
| (b)   | Any other recurrent charges (to be specified)                                          |          | N/A                                      | N/A                            | N/A                                                     | N/A                                       |
| 2.    | Network Security Charges                                                               |          |                                          |                                |                                                         |                                           |
| (a)   | One time Installation and Commissioning/Configuration Charges                          |          | 126,000                                  | 24,000                         | 150,000                                                 | 150,000                                   |
| (b)   | Any other charges (to be specified) i.e. licenses etc                                  |          | N/A                                      | N/A                            | N/A                                                     | N/A                                       |
| 3.    | Any hardware charges                                                                   |          | N/A                                      | N/A                            | N/A                                                     | N/A                                       |
| (a)   | Any required terminal equipment                                                        |          | N/A                                      | N/A                            | N/A                                                     | N/A                                       |
| (b)   | Three-Year Manufacturer's extended support for each of the selected brand of equipment | LOT      | N/A                                      | N/A                            | N/A                                                     | N/A                                       |
| 4     | Network Vulnerability Assessment, Penetration and stress testing services              | Annual   | 252,000                                  | 48,000                         | 300,000                                                 | 300,000                                   |

6.3 Payment shall be made in Kenya Shillings within thirty (30) days upon receipt of the invoice from the Service Provider.

6.4 The following provisions shall apply for internet service outage:

6.4.1 Where the Service Provider fails to provide internet access availability, the Commission shall be entitled to receive service credits on a pro-rata basis of the monthly payable price to a maximum of 20% of the monthly payable

IN WITNESS WHEREOF the parties hereto have caused this Contract to be executed in accordance with the Laws of Kenya on the day and year hereinbefore written.

SIGNED for and on behalf of the **SALARIES AND REMUNERATION COMMISSION**

Name: **ANNE GITAU**

Title: **CHIEF EXECUTIVE OFFICER/ COMMISSION SECRETARY**

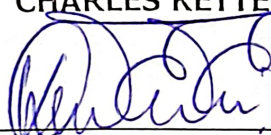
Signature: \_\_\_\_\_



HEAD OF DEPARTMENT

Name: **CHARLES KETTER**

Signature: \_\_\_\_\_



29/11/2023

SIGNED for and on behalf of **M/s XTRANET COMMUNICATION LIMITED**

Name: **HENRY CHEGE**

Title: **CHIEF EXECUTIVE OFFICER**

Signature: \_\_\_\_\_



Name:

**Evan Kamau**

Title:

**Accountant**

Signature: \_\_\_\_\_

